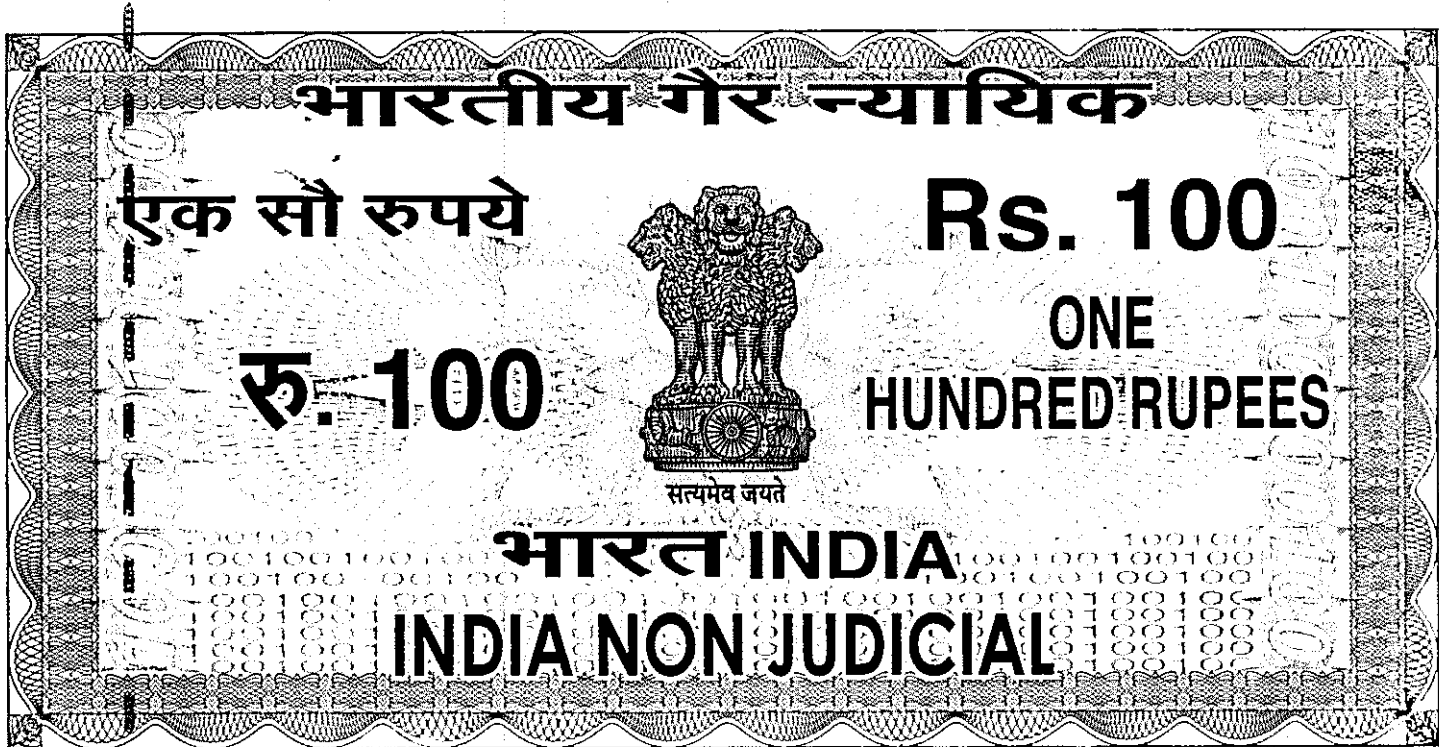




गोवा GOA

Serial 4542 Date of issue 05/12/06
Value Rs. 100/-
Name of person Pascoal Trindade
Residence
Purpose

063755

Sign. of Stamp Vendor
Mangala N. Karaparkar
License No. AC/STP/VEN/747/99

Sign. of Purchaser

MEMORANDUM OF UNDERSTANDING

This M.O.U. executed on 15th day of December, 2006 at Panaji, Goa, by and between

MR. PASCOAL TRINIDADE, age 65 years, residing at Pastina Villa, N.I.O. Circle, Dona Paula Goa, hereinafter referred to as the

TH

'Owner' (which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include his heirs, executors, legal representatives and assigns) of the First Part.

And

M/S.PRAVAR TRADE-INVEST PVT.LTD. a company registered under the Indian Companies Act, 1956 having its office at Block-B, D' Road, Churchgate, Mumbai-400020 hereinafter referred to as the 'Co-Ordinator' (which expression shall, whenever the context so requires and unless repugnant to its meaning be deemed to mean and include their directors, successors and assigns) of Other Part.

Whereas the Owners herein vide the sale deed dtd.25th April 2006, 25th April 2006, & 25th April 2006 have purchased all that pieces and parcels of land hereunder written, land S. No. 93/2 admeasuring about 35600 sq. mtrs., S. No. 93/3 admeasuring about 26825 sq. mtrs., S. No. 93/4 admeasuring about 35075 sq. mtrs., all situated at Bambolim known as "BAILEM FONDIEM", "SAVELI GALL" or "OHOR" within the limits of the Village Panchayat Curca, Bambolim and Talaulim, Taluka Tiswadi, Registration sub-Districts of Ilhas, District of North Goa more particularly described in Schedule-I, II & III respectively from one MRS. DIONISIA DIAS E MERGULHAO alias MRS. DIONISIA DIAS, being the owners therein and one Mr. Raghurai Tamba being the Confirming Party at the terms and conditions and consideration mentioned in the said sale deeds.

AND WHEREAS the Owner herein has entered and executed another agreement dtd.10/8/2006 with said Mr. Tamba the Confirming Party in the said sale deeds at the terms and

....3....



conditions mentioned therein the said agreement for carrying out various acts and deeds by said Mr.Tamba for getting the deletion of the names of Mr. Madhukar Cunconkar & Others from the Form-1&14 which were wrongly entered and to settle the claim of Comunidade in accordance with the consent terms filed and or by paying suitable compensation in lieu of allotment of plots of land.

AND WHEREAS due to diverse reasons the said Mr.Tamba could not and did not carry out the said acts and deeds as enumerated above viz. deletion of the names of the said Madhukar Cunconkar & Others and avail the settlement of the claim of the said Comunidade and thereby failed to perform his part of obligations as envisaged in the said agreement dtd.10/8/2006.

AND WHEREAS the Owner herein therefore approached the Co-Ordinator herein who has past experience and financial resources to assist him for getting the names of said Mr.Madhukar Cunconkar & Others deleted from form 1 & 14 and execute the proper agreement/s with the committee of the said Comunidade and pay the compensation in lieu of the allotment of the plots of land for settling their claim.

AND WHEREAS the parties hereto have discussed the various aspects for achieving the above task and to remove all the encumbrances in the title to perfect the titles of the said properties and thereafter develop the said properties jointly and/or sell the said properties to any intending purchasers at the terms and conditions agreed by and between the parties hereto.

....4.....



AND WHEREAS mutually agreed terms and conditions by and between the parties hereto are recorded hereinbelow.

NOW THEREFORE THIS MOU WITNESSETH AS UNDER

1. In lieu of the Co-Ordinator providing financial resources and other assistance as may be required for and towards
 - a. Compensation if any, payable to the said Mr.Madhukar Cunconkar & Others for obtaining their NOC for deletion of their names from Form 1 & 14 which were erroneously entered.
 - b. Compensation payable to the said Comunidade in lieu of the allotment of plots of land in accordance with the Court Decree and/or compensation payable towards any other or further settlement which may be agreed by and between the Owner herein and the said Comunidade
 - c. the Owner shall pay or cause to be paid 40% of the total consideration to be received from any intending purchaser of the said properties and/or shall give 40% of the total profits which may accrue in the event of said properties are offered to any intending developers for the joint development.
2. It is specifically agreed by and between the parties hereto that the Owner shall conduct all the meetings with the said Mr.Madhukar Cunconkar & Others and the said Comunidade in presence of the Co-Ordinator herein and/or their representative.

....5....



3. The compensation and the consideration payable to the said Mr.Madhukar Cunconkar & Others and the said Comunidade respectively as may be mutually agreed by the parties hereto and the same shall be paid by the Co-Ordinator to the Owner herein and/or may be paid directly to the party concerned under the instruction of the Owner herein.
4. It is specifically agreed by the Co-Ordinator herein that they shall pay the consultancy charges / commissions if any to other agencies/ persons whose assistance are required to obtain and/or caused to be obtained the tasks envisaged hereunder.
5. It is specifically agreed by the Owner herein that he shall pay and/or caused to be paid any further amount over and above Rs.3 Cr. if becomes payable to the said Mr.Madhukar Cunconkar & Others and/or the said comunidade for settling their respective claims.
6. It is specifically agreed by and between the parties hereto that the party of the second part shall discuss and/or negotiate with intending party/ies either for the joint development of the said properties and/or outright sale of the said properties to any intending purchasers.
7. It is specifically agreed by and between the parties hereto that they shall not do any act, deed or thing which will affect the title of the said properties.
8. Each Party personally guarantees the performance of their respective covenants and obligations under these presents and agrees to keep indemnified the Other Party against any loss arising on account of non-performance thereof.
9. The parties hereto irrevocably agree that under no circumstances these presents shall be terminated singularly by one single party to these presents. Any breach of the terms on the part of any party hereto shall result in to aggrieved party demanding specific performance of this agreement and not the termination of this agreement.

10. No wavier of any breach of any provision of this agreement shall constitute a wavier of any prior, concurrent or subsequent breach of the same of any other provisions hereof, and no wavier shall be effective unless made in writing and signed by an authorized representative of the waiving party.
11. The Parties expressly agree to execute any further and/or other document/s as may be required to give proper and legal effect to the arrangement envisaged herein.
12. All out of pocket expenses of and incidental to this agreement to be made in pursuance hereof including stamp duty and registration charges thereon shall be borne and paid by the Party of the Second part alone.
13. This Agreement shall be governed by and construed in accordance with the laws of India.
14. The Parties shall be liable and responsible to pay their statutory liabilities and shall indemnify and keep indemnified each other in respect thereof.
15. If at any time any difference shall arise between the parties hereto in regard to the interpretation of any of the clauses herein contained or to any decision, act or thing to be made or done in pursuance hereof or to any other matter or thing relating to the said construction of the said hotel building or the affairs thereof as also to any question of law arising, the same shall be referred to the two arbitrators, one to be appointed by the Party of the First Part and one to be appointed by the Party of the Second Part and every such reference shall be deemed an arbitration within the meaning of Arbitration and Conciliation Act, 1996 and be subject to the provisions as to arbitration contained in the said Act including any amendment or modification or re-enactment thereof.

SCHEDULE - I

(The SAID PROPERTY hereinabove referred to)

All that property bearing Survey No. 93/2 situated at Village Bambolim known as "BAILEM FONDIEM", "SAVELI GALI" OR "OHOR" admeasuring 35,600 sq. mtrs. approximately within the limits of the Village Panchayat Curca, Bamboliin and Talaulim, Taluka of Tiswadi, Registration sub-Districts of Ilhas, District of North Goa and bounded as follows:

On the North : By Bambolim Village Road and Plot surveyed under No. 701/7-11

On the South : By Plot under No.103.

On the East : By Plot surveyed under 93/1.

On the West : By the Plot of G.M.C. surveyed under Nos. 93,106, 107/1, 2,3,5&6

SCHEDULE - II

(The SAID PROPERTY hereinabove referred to)

All that property bearing Survey No. 93/3 situated at Village Bambolim known as "BAILEM FONDIEM", "SAVELI GALI" OR "OHOR" admeasuring 26,825 sq. mtrs. approximately within the limits of the Village Panchayat Curca, Bamboliin and Talaulim, Taluka of Tiswadi, Registration sub-Districts of Ilhas, District of North Goa and bounded as follows:

On the North : By Bambolim Village Road and Plot surveyed under No. 701/7-11

On the South : By Plot under No.103.

On the East : By Plot surveyed under 93/1.

On the West : By the Plot of G.M.C. surveyed under Nos. 93,106, 107/1, 2,3,5&6



SCHEDULE - III

(The SAID PROPERTY hereinabove referred to)

All that property bearing Survey No. 93/4 situated at Village Bambolim known as "BAILEM FONDIEM", "SAVELI GALI" OR "OHOR" admeasuring 35,075 sq. mtrs. approximately within the limits of the Village Panchayat Curca, Bamboliin and Talaulim, Taluka of Tiswadi, Registration sub-Districts of Ilhas, District of North Goa and bounded as follows:

On the North : By Bambolim Village Road and Plot surveyed
under No. 701/7-11

On the South : By Plot under No.103.

On the East : By Plot surveyed under 93/1.

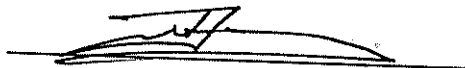
On the West : By the Plot of G.M.C. surveyed under Nos. 93,106,
107/1, 2,3,5&6

....9....



IN WITNESS WHEREOF the parties hereto have hereunto set and
subscribed their respective hands the day and year first
hereinabove written.

SIGNED, SEALED AND DELIVERED)
by the withinnamed OWNER)
MR. PASCOAL TRINIDADE)
in the presence of)



SIGNED, SEALED AND DELIVERED for)
and on behalf of the withinnamed CO-ORDINATOR)
M/S. PRAVAR TRADE-INVEST PVT.LTD.)
by its Director MR. VIKRAM SHAH)

In the presence of witnesses:

1. _____

2. _____